

COMMERCIAL LEASE AGREEMENT — BUYER TRIPLE NET (VERSION 2)

Amendment and Restatement of Selected Provisions *Effective Date: March 1, 2026*

ARTICLE IV — RENT AND PAYMENT TERMS

Section 4.1 — Base Rent Payment Schedule Tenant shall pay base rent on the **10th day of each calendar month** during the term of this Lease. Payment shall be made by electronic funds transfer or certified check payable to Landlord at the address specified herein. In the event that rent is not received by the **15th day of the month** (a grace period of 5 days), Tenant shall be assessed a late payment fee equal to **8% of the monthly base rent amount**. This late fee shall be due and payable immediately upon assessment and shall be considered additional rent under this Agreement. Repeated late payments (more than two occurrences in any 12-month period) shall constitute a material breach of this Lease.

ARTICLE VII — INSURANCE REQUIREMENTS

Section 7.1 — Commercial General Liability Insurance Throughout the term of this Lease and any renewal periods, Tenant shall procure and maintain, at Tenant's sole cost and expense, the following insurance coverages from insurers licensed to do business in the state where the Premises are located and rated no less than A-VII by AM Best: (a) **Commercial General Liability Insurance** with a combined single limit of not less than **\$3,000,000 per occurrence** and \$5,000,000 in the aggregate, covering bodily injury, property damage, personal injury, and advertising injury arising out of or in connection with Tenant's use and occupancy of the Premises; (b) **Business Interruption Insurance** providing coverage for a minimum period of **18 consecutive months**, sufficient to cover Tenant's gross revenues and fixed operating expenses during any period of business interruption caused by damage to or destruction of the Premises; (c) Workers' Compensation Insurance as required by applicable law. Landlord and Landlord's lender shall be named as additional insureds on all liability policies. Tenant shall provide certificates of insurance evidencing such coverage prior to occupancy and upon each policy renewal.

ARTICLE IX — MAINTENANCE AND REPAIRS

Section 9.3 — HVAC Systems Notwithstanding any other provision of this Lease, responsibility for heating, ventilation, and air conditioning (HVAC) system maintenance and repair shall be allocated as follows: (a) **Tenant's Responsibility:** Tenant shall be solely responsible for all routine HVAC maintenance, including but not limited to

filter replacements (no less than quarterly), coil cleaning, belt inspections, and any repairs or service calls with a total cost of **\$1,500 or less per incident**. Tenant shall maintain a service contract with a licensed HVAC contractor and provide evidence of such contract to Landlord upon request.(b) **Landlord's Responsibility:** Landlord shall be responsible for all HVAC repairs, replacements, or capital improvements where the cost of a **single incident exceeds \$1,500**. This includes compressor replacements, full unit replacements, major ductwork repairs, and any repair necessitated by structural deficiencies of the building. Landlord shall respond to written repair requests within 10 business days and shall complete such repairs within 30 days of written notice, subject to parts availability and force majeure conditions.

ARTICLE XII — RENEWAL OPTIONS

Section 12.1 — Option to Renew Provided that Tenant is not in default under this Lease at the time of exercise or at the commencement of the renewal term, Tenant shall have the option to renew this Lease for **one (1) additional term of five (5) years** upon the following conditions:(a) **Notice Requirement:** Tenant shall exercise this renewal option by delivering written notice to Landlord no later than **twelve (12) calendar months prior to the expiration** of the initial lease term. Time is of the essence with respect to this notice requirement. Failure to deliver timely written notice shall render this renewal option null and void without further action by either party.(b) **Rent Adjustment:** The base rent for the renewal term shall be determined by mutual agreement of the parties; provided, however, that any increase in base rent from the final year of the initial term shall **not exceed four percent (4%) per year** on a compounded annual basis. If the parties are unable to agree on the renewal rent within 60 days of Tenant's exercise notice, either party may terminate the renewal option by written notice.(c) All other terms and conditions of this Lease shall remain in full force and effect during the renewal term.

ARTICLE XIV — ASSIGNMENT AND SUBLETTING

Section 14.2 — Subletting Subject to the terms and conditions of this Article, Tenant shall have the right to sublet a portion of the Premises, subject to the following limitations and procedures:(a) **Permitted Subletting Area:** Tenant may sublet up to **forty percent (40%) of the total rentable square footage** of the Premises to one or more subtenants. Subletting of more than 40% of the Premises shall require separate written consent of Landlord, which may be withheld in Landlord's sole discretion.(b) **Landlord Consent:** Any subletting within the permitted 40%

threshold shall require the prior written consent of Landlord, which consent **shall not be unreasonably withheld, conditioned, or delayed**. Tenant shall submit a written request to Landlord including the proposed subtenant's name, business description, financial statements for the prior two years, and a copy of the proposed sublease agreement.(c) **Landlord Response Period:** Landlord shall respond to any subletting request in writing within **twenty (20) business days** of receipt of Tenant's complete written request. Failure by Landlord to respond within such period shall be deemed approval of the proposed subletting.(d) Tenant shall remain primarily liable under this Lease notwithstanding any approved subletting. Any sublease shall be expressly subordinate to this Lease and shall terminate automatically upon any termination of this Lease.

This document constitutes Version 2 of the Commercial Lease Agreement — Buyer Triple Net and supersedes and replaces the corresponding sections of the original agreement dated upon first execution.